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An important statement regarding the case of Mr. Nurul Amin Shah Alam

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An important statement regarding the case of Mr. Nurul Amin
Shah Alam

The Legal Aid Bureau of Buffalo acknowledges the intense and widespread interest and outrage related to the tragic case of Mr. Nurul Amin Shah Alam – outrage that we share. To begin, attorney-client privilege prevents Legal Aid from sharing personal or privileged information, even after a client's death, so we must remain ethically responsible in our remarks. We are comfortable sharing the following timeline surrounding Mr. Alam's release and death.

A plea was negotiated with the Erie County District Attorney's office to resolve this case that Legal Aid felt was fair and appropriate. Erie County District Attorney Michael Keane has released a statement about his decision to make that plea offer. In summary, he did so giving consideration to the facts of the case, Mr. Alam's personal circumstances, and his refugee status. The overwhelming majority of criminal cases are resolved via plea and plea negotiations. This case was not unique.

On February 9, 2026, Mr. Alam accepted the plea in Erie County Court. Sentencing was scheduled for March 24, 2026. Mr. Alam was lawfully in the United States under refugee status. Mr. Alam had been held on bail from the inception of the case, and a federal immigration detainer was filed with the Erie County Sheriff's Office in the event that he was released from County custody. Despite his legal status, due to the uncertainty of the current immigration climate, a strategic decision was made not to post bail for fear that he would disappear into immigration custody.

Following the plea, an outside immigration attorney consulting on the matter, thoroughly vetted Mr. Alam's situation, including the terms of the plea, and advised Mr. Alam's family that it was safe to post bail and secure his release without fear of detention or deportation by federal authorities. Bail was posted on February 19, 2026, and the Erie County Sheriff's Office released him to the custody of Customs and Border Protection (CBP) pursuant to an immigration detainer.

It is our understanding that after a few hours, CBP determined that

Homeland Security was not going to seek to detain Mr. Alam and he could be released, consistent with the conclusion of the consulting immigration attorney's determination. CBP released Mr. Alam at a Tim Horton's restaurant at 2207 Niagara St. near his last known address sometime after 8:00 pm. That Tim Horton's location closed at 7:00 pm that night. Mr. Alam's family no longer lived at the prior address or in that part of the city.

Mr. Alam was extremely vulnerable. He spoke almost no English and could not communicate without the aid of an interpreter. He suffered from severely impaired vision and had other health issues. He had been in custody for a little over a year. He had only been in the US for a few months prior to his arrest. He would not have known where he was or had the wherewithal to contact his family or avail himself of other resources or services that could have assisted him.

Legal Aid fights every day for justice for our clients, including refugees fleeing brutal unrest in their native countries. Once Mr. Alam was in federal custody, he should have been protected and respected, not turned out of a federal law enforcement vehicle into the uncertain winter night. Legal Aid stands for the principle that every person, including Mr. Alam, deserves basic human dignity, protection and safety. Legal Aid worked for more than a year to make certain Mr. Alam, who had legal refugee status to be in America, received the same protection under the law anyone in our country should expect. In the end, had Mr. Alam been afforded basic humane treatment, this tragedy could have been avoided.

–Legal Aid Bureau of Buffalo Inc.

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